



New York Sexual Harassment Prevention Training
For Covered New York State and New York City Employees

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Introduction

Sexual harassment will not be tolerated.



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Learning Objectives

This interactive training includes an explanation of:

- what sexual harassment is, including examples of conduct that would constitute unlawful sexual harassment
- sexual harassment as a form of unlawful discrimination under local federal, state, and local laws
- what retaliation is, including examples of conduct that would constitute retaliation
- the specific responsibilities of supervisors and managers in the prevention of sexual harassment and retaliation
- bystander responsibility
- the internal and external complaint options available to employees to address sexual harassment claims
- measures employees may take to appropriately address sexual harassment complaints, and
- employees' rights of redress and all available forums for adjudicating complaints.

For more information, visit: <https://www.ny.gov/programs/combating-sexual-harassment-workplace>

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Sexual Harassment Overview

Sexual harassment is a form of sex discrimination and is unlawful under federal, state, and (where applicable) local law.



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Federal Protected Categories

Discrimination against an employee based on membership in any of these classes is prohibited under federal anti-discrimination law:

- Age
- Color
- Disability
- Gender
- Immigration Status
- National Origin
- Pregnancy
- Race
- Religion
- Sexual Orientation

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State Protected Categories

Discrimination against an employee based on membership in any of these classes is prohibited under state anti-discrimination law:

- Race
- Color
- Creed
- National Origin
- Religion
- Sex (including pregnancy, childbirth, and related medical conditions)
- Disability (physical or mental)
- Age (18 and older)
- Marital Status
- Family Status (pregnancy, caring for a child under 18, or seeking to adopt a child under 18)
- Sexual Orientation (includes perceived sexual orientation)
- Gender Identity or Expression
- Lawful Use of Any Product (or lawful recreational activities when not at work)
- Military Status or Service
- Observance of Sabbath
- Political Activities
- Use of Service Dog
- Prior Arrests or Criminal Accusation
- Prior Convictions (unless certain requirements have been met)
- Domestic Violence Victim Status
- Predisposing Genetic Characteristic

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New York City Protected Categories

The New York City Human Rights Law prohibits discrimination in employment based on actual or perceived:

- Age
- Citizenship Status
- Color
- Creed
- Disability
- Family Status
- Gender, Gender Identity, and Gender Expression
- Lawful Occupation
- Lawful Source of Income
- Marital Status National Origin
- Partnership Status
- Race
- Sexual Orientation
- Status as a Veteran
- Active Military Service Member
- Status as a Victim of Domestic Violence, Stalking, or Sex Offenses
- Arrest or Conviction Record
- Credit History
- Salary History

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Sexual Harassment Prevention Policy



Your sexual harassment prevention policy should apply to:

- all employees
- applicants for employment
- interns (paid or unpaid)
- contractors, and
- persons conducting business

regardless of immigration status.

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Types of Sexual Harassment



Hostile Environment



Quid Pro Quo



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Types of Sexual Harassment – continued



Hostile Environment

A **hostile environment** on the basis of sex may be created by words, signs, jokes, pranks, intimidation, physical actions or violence, either of a sexual nature or not of a sexual nature, directed at an individual because of that person's sex.



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Types of Sexual Harassment – continued



Hostile Environment

A **hostile environment** on the basis of sex may be created by words, signs, jokes, pranks, intimidation, physical actions or violence, either of a sexual nature or not of a sexual nature, directed at an individual because of that person's sex.



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Types of Sexual Harassment – continued

Quid pro quo sexual harassment occurs when a person in authority trades, or tries to trade, job benefits for sexual favors.



Quid Pro Quo

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Activity:

☒ Knowledge Check

1. Can a male employee be the victim of quid pro quo sexual harassment?
2. Can quid pro quo harassment be based on a single event?
3. Could asking a co-worker out on a date be considered sexual harassment?

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Activity:

☒ Knowledge Check

5. What do you think is the underlying reason for sexual harassment?
6. What is the best way to eliminate sexual harassment in the workplace?

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Activity: **Knowledge Check**

Read each scenario and decide if the situation describes:

- ☐ a hostile work environment
- ☐ quid pro quo, or
- ☐ non-sexual harassment.

Scenario #1

You and Chris have been good friends for three years. You have dated on several occasions. Last week Chris was promoted to division head of your region. Chris is not your direct supervisor, but is the head of your division. Chris stops by your office and asks you to dinner. Concerned about how having dinner with the new division head may look, you decline. Chris leans over your desk and in a whisper makes it very clear that if you want to be promoted to team leader, it is in your best interest to go to dinner.

Scenario #2

Alice, Jana, and Jeff work in a very tight-spaced, three-person department. They work very well together and are friends outside of work. They have gone out after work on several occasions. Jeff is usually the first one to leave the after-work festivities. Alice and Jana stay out late flirting with various men they meet in the bar. The next morning, Alice and Jana come in very tired and hung over. Jeff knows that on those days he is going to have to pick up some extra work because the women are too out-of-it to handle their fair share.

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Activity: **Knowledge Check**

Read each scenario and decide if the situation describes:

- ☐ a hostile work environment
- ☐ quid pro quo, or
- ☐ non-sexual harassment.

Scenario #3

You went to your supervisor to request some vacation time so that you could go on a trip to the Bahamas with your spouse. Your supervisor agreed to let you take your vacation, if you go on an overnight business trip. You and your supervisor would be the only employees on this business trip. Your supervisor places a hand on your shoulder and insinuates that if you can't go on the business trip, your vacation request could get lost and not approved.

Scenario #4

Every time you have to go into the art department to work with Lee, he comments on what you're wearing. Lee has a real eye for color and likes the way you dress. On several occasions, Lee has come up to you and placed his hand on your clothes claiming to want to feel the fabric, or get a closer look at an accessory. Lee doesn't treat everyone like this. Lee also has a habit of looking at you from head-to-toe before listening to you. You have asked Lee to stop checking you out on several occasions, but the behavior continues. You're not sure whether Lee is conscious of the "elevator eyes," but the behavior makes you very uncomfortable.

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Activity: **Knowledge Check**

Read each scenario and decide if the situation describes:

- ☐ a hostile work environment
- ☐ quid pro quo, or
- ☐ non-sexual harassment.

Scenario #5

One of your co-workers, Janet, has been asking you out on dates by leaving notes on your desk, sending you pictures of her, and recruiting co-workers to get you to go out with her. You told Janet that you are not interested. But now some of your co-workers have been making comments and hinting that maybe you don't like women. You don't really care what they think, but you don't think you should have to listen to their unsolicited opinions on your sexuality.

Scenario #6

You just started a new job. Being the new person, you have had to deal with some regular teasing by your new co-workers. Most of the time, the teasing seems good-natured and "all in fun," but there have been a few times when the teasing has made you feel uncomfortable. You don't really like being touched (even gentle slaps on the back), and some of the things that have been said were a little humiliating.

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Activity: **Knowledge Check**

Read each scenario and decide if the situation describes:

- ☐ a hostile work environment
- ☐ quid pro quo, or
- ☐ non-sexual harassment.

Scenario #7

Your work area is a back office operation that's pretty hectic. People swear at each other, call each other names, and make catcalls and comments at each other. One of your co-workers visits a joke website every morning and shouts out the joke of the day, usually of a sexual nature. Most of the workers participate, but a few seem uncomfortable.

Scenario #8

One of your co-workers has approached you with a problem. She is being hit on by her department supervisor who has hinted to her that dating him would be "good for her career." She is not interested, but is not sure how to tell the supervisor "no" without it becoming a problem for her. She doesn't want you to do anything about it - she just wanted to tell someone and talk it over. She's sure she will find a way to handle the situation. She asked you to promise not to discuss the matter with anyone.

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Activity: **Knowledge Check**

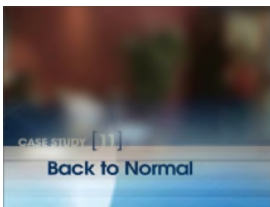
Read each scenario and decide if the situation describes:

- ☐ a hostile work environment
- ☐ quid pro quo, or
- ☐ non-sexual harassment.

Scenario #9

Janet has a problem with her co-worker, Mike. They used to be friends at work, but at one point, Mike made some overtly sexual comments toward her and she asked him to stop. After she confronted Mike, he stopped talking to her altogether. Even though Mike is still not talking to Janet, she has recently caught him staring at her body - sometimes for long periods of time. Over the past week or so, she has observed Mike staring at her at least one or two times each day.

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Video**PAYCHEX**

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Who can be the target?
Who can be the perpetrator?



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Where can workplace
sexual harassment occur?



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Sex Stereotyping

... occurs when conduct or personality
traits are considered inappropriate
because they may not conform to other
people's ideas.



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Retaliation

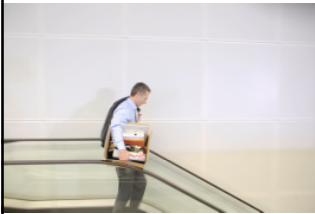
Any employee who has engaged in a "protected activity" is protected by law from being retaliated against.



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Retaliation – continued



Retaliation is any action taken to alter an employee's terms and conditions of employment because the individual engaged in a protected activity.

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The Supervisor's Responsibilities

- They are placed in a position of authority.
- Their actions can create liability for the employer.
- They are required to report any harassment.
- They are responsible for any harassment or discrimination that they should have known of.
- They are expected to model appropriate workplace behavior.



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The Supervisor's Responsibilities – continued

Whenever unlawful harassment by a manager results in a tangible employment action against the victim, the employer may be held strictly liable for damages.



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The Supervisor's Responsibilities – continued

Mandatory Reporting

Supervisors must report any harassment that they observe or know of, even if no one is objecting to the harassment.



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If You Witness Harassment . . .

. . . or become aware of potential instances of sexual harassment, you should report it to a supervisor, manager, or designee.



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Bystander Intervention – Definitions



Bystander
A person who witnesses sexual harassment.



Victim
A person who has been sexually harassed.



Ally
A person who believes sexual harassment is wrong, supports victims, and takes action to stop sexual harassment.

All employees have the right to work in a harassment-free workplace.

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Bystander Options

- *Confront* the harasser; say stop.
- Be an *ally* to the victim.
- *Document* what you see.
- *Support* the victim if they need it.
- *Interrupt or distract* the harasser.
- *Follow up* with the victim.



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If You Are Harassed...



Please note that the sexual harassment complaint form is a draft document.

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If You Are Harassed...



Please note that the sexual harassment complaint form is a draft document.

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Complaint Process for Victims of Harassment

Employees who feel they have been subjected to harassment in the workplace may take steps to remedy the situation . . .

- Follow the company's internal procedures.
- Contact the Equal Employment Opportunity Commission (EEOC).
- File a complaint with the New York State Division of Human Rights.
- If you work in New York City, you may file a complaint with the NYC Commission on Human Rights.
- Contact your local police department.



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Potential Remedies for Victims of Harassment

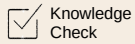
The types of relief will depend upon the discriminatory action and the effect it had on the victim.

- A victim of discrimination may be able to recover attorney's fees, expert witness fees, and court costs.
- Compensatory and punitive damages may be awarded in cases involving intentional discrimination.
- Punitive damages may be awarded or civil penalties may be applied to punish an employer who has committed an especially malicious or reckless act of discrimination.
- In cases involving sex-based wage discrimination under the Equal Pay Act, victims cannot recover either compensatory or punitive damages, but may be entitled to "liquidated damages."



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Activity:Knowledge
Check

1. If you witness any potential instances of sexual harassment, what should you do?
2. What does it mean to be an ally to a victim?
3. What is a bystander?
4. As a bystander, if you don't feel comfortable confronting harassment, what else can you do?

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Investigation and Corrective Action**The Investigation Process****PAYCHEX**
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External RemediesUnited States Equal Employment Opportunity Commission
www.eeoc.govNew York State Division of Human Rights
www.dhr.ny.govNew York City Commission on Human Rights
www.NYC.gov/HumanRights

Local jurisdiction; local police department, where applicable.

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Other Types of Workplace Harassment

Any harassment or discrimination based on a protected characteristic is prohibited in the workplace and may lead to disciplinary action against the perpetrator.



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Summary

This interactive training included an explanation of:

- what sexual harassment is, including examples of conduct that would constitute unlawful sexual harassment
- sexual harassment as a form of unlawful discrimination under federal, state, and local laws
- what retaliation is, including examples of conduct that would constitute retaliation
- the specific responsibilities of supervisors and managers in the prevention of sexual harassment and retaliation
- bystander responsibility
- the internal and external complaint process available to employees to address sexual harassment claims
- measures employees may take to appropriately address sexual harassment complaints, and
- employees' rights of redress and all available forums for adjudicating complaints.

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Key Points

- Sexual harassment is against the law and will not be tolerated.
- Harassment based on a protected characteristic is prohibited.
- All harassment should be reported.
- Managers and supervisors have a special responsibility to report and investigate harassment.
- Retaliation for reporting harassment is prohibited.
- Always refer to your company's sexual harassment prevention policy!

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For More Information...

For more information on New York sexual harassment prevention training, visit:
<https://www.ny.gov/programs/combating-sexual-harassment-workplace>

For more information on New York City anti-sexual harassment training, visit:
<https://www1.nyc.gov/site/cchr/law/sexual-harassment-training.page>

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Activity: Case Study Scenarios



Directions

- Read the scenario and determine your answer to each question.
- We'll discuss the answers as a group.



Case Study #1

Li Yan's co-worker, Ralph, has just been through a divorce. He drops comments on occasion that he is lonely and needs to find a girlfriend. Li Yan and Ralph have been friendly in the past and have lunch together in local restaurants on many occasions.

Ralph asks Li Yan to go on a date with him – dinner and a movie. Li Yan likes Ralph and agrees to go out with him. She enjoys her date with Ralph, but decides that a relationship is not a good idea. She thanks Ralph for a nice time, but explains that she does not want to have a relationship with him.

Ralph waits two weeks and then starts pressuring Li Yan for more dates. She refuses, but Ralph does not stop. He keeps asking her to go out with him.

Choose True or False to answer the following questions:

1. When Ralph first asked Li Yan for a date, this was sexual harassment.
2. Li Yan cannot complain of sexual harassment because she went on a date with Ralph.

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Case Study #1 – continued

Li Yan complains to her supervisor, and the supervisor (as required) reports her complaint to the person designated by her employer to receive complaints. Ralph is questioned about his behavior and he apologizes. He is instructed by the designated person to stop.

Ralph stops for a while, but then starts leaving little gifts for Li Yan on her desk with accompanying notes. The notes are not overtly offensive, but Ralph's behavior is starting to make Li Yan nervous, as she is afraid he may start stalking her.

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Choose True or False to answer the following question:

3. Ralph's subsequent behavior with the gifts and notes is **not** sexual harassment because he has stopped asking Li Yan for dates, as instructed. He is just being nice to Li Yan because he likes her.

Case Study #2

Sharon transfers to a new location with her employer. Her new supervisor, Paul, is friendly and helps her get familiar with her new job duties. After a few days, when no one else is around, Paul comes over to Sharon's work area to chat. Paul talks about what he did last night, which was to go to a strip club. Sharon is shocked that Paul would bring up such a topic in the workplace and says nothing in response. Paul continues talking and says that all the women in the office are so unattractive that he needs to get out and "see some hot chicks" once in a while.

He tells Sharon that he's glad she joined the staff because, unlike the others, she is "easy on the eyes." Sharon feels very offended and demeaned that she and the other women in her workplace are being evaluated on their looks by their supervisor.

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Choose True or False to answer the following questions:

1. Because Paul did not tell Sharon that she is unattractive, he has not harassed her.
2. By bringing up his visit to a strip club, Paul is engaging in inappropriate workplace behavior.
3. Paul should be instructed to stop making these type of comments, but this is not a serious matter.

Case Study #3

Carla works as a licensed heavy equipment operator. Some of her male co-workers think it's fun to tease her. Carla often hears comments like "watch out, here she comes that crazy woman driver" in a joking manner.

In addition, someone keeps putting a handmade sign on the only port-a-potty at the worksite that says "Men Only."

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Choose True or False to answer the following questions:

1. Women in traditionally male jobs should expect teasing and should not take the joking comments too seriously.
2. Carla cannot complain because the site supervisor sometimes joins in with the joking behavior, so she has nowhere to go.

Case Study #3 – continued

Some of Carla's other co-workers are strongly opposed to her presence in the traditionally all-male profession.

These co-workers have sometimes said things to her like, "You're taking a job away from a man who deserves it," or "You should be home with your kids," and "What kind of a mother are you?" Also, someone scratched the word "bitch" on Carla's toolbox.

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Choose True or False to answer the following questions:

3. These behaviors, while rude, are not sexual harassment because they are not sexual in nature.
4. There is nothing Carla can do because she can't prove who vandalized her toolbox.

Case Study #4

Keisha has noticed that her new boss, Sarah, leans extremely close to her when they are going over the reports that she prepares. She touches her hand or shoulder frequently as they discuss work.

Keisha tries to move away from her in these situations, but she doesn't seem to get the message.

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Choose True or False to answer the following question:

1. Keisha should just ignore Sarah's behavior, as it is not sufficiently severe or pervasive.

Case Study #4 – continued

Before Keisha gets around to complaining, Sarah brushes up against her back in the conference room before a meeting. She is now getting really annoyed but still puts off doing anything about it.

Later, Sarah "traps" her in her office after they finish discussing work by standing between her and the door of her small office.

Keisha doesn't know what to do, so she moves past her to get out. As she does so, Sarah runs her hand over her breast.

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Choose True or False to answer the following questions:

2. Sarah's brushing up against Keisha in the conference room could just be inadvertent and does not give Keisha any additional grounds to complain about Sarah.
3. Sarah touching Keisha's breast is inappropriate, but is probably not unlawful harassment because it only happened once.

Case Study #5

Tatiana is hoping for a promotion to a position that she knows will become vacant soon. She knows that her boss, David, will be involved in deciding who will be promoted. She tells David that she will be applying for the position, and that she is very interested in receiving the promotion. David says, "We'll see. There will be a lot of others interested in the position."

One week later, Tatiana and David travel together on business, including an overnight hotel stay. Over dinner, David tells Tatiana that he hopes he will be able to promote her, because he has always really enjoyed working with her. He tells her that some other candidates "look better on paper," but that she is the one he wants. He tells her that he can "pull some strings" to get her into the job, and Tatiana thanks David. Later David suggests that they go to his hotel room for "drinks and some relaxation." Tatiana declines David's "offer."

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Choose True or False to answer the following question:

1. David's behavior could be considered harassment of Tatiana.

Case Study #5 – continued

After they return from the trip, Tatiana asks David if he knows when the job will be posted so that she can apply.

He says that he is not sure, but there is still time for her to "make it worth his while" to pull strings for her.

He then asks, "How about going out to dinner this Friday and then coming over to my place?"

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Choose True or False to answer the following questions:

2. David engaged in quid pro quo harassment.
3. Tatiana cannot complain of harassment because she voluntarily engaged in sexual activity with David.

Case Study #5 – continued

Weeks later, Tatiana receives the promotion.

Tatiana later breaks off the sexual activities with David.

He then gives her a bad evaluation, and she is removed from her new position at the end of the probationary period and returns to her old job.

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Choose True or False to answer the following questions:

4. Tatiana cannot complain of harassment because she got the job, so there is no discrimination against her.
5. It's now "too late" for Tatiana to complain. Losing a place of favor due to the breakup of the voluntary relationship does not create a claim for sexual harassment.

Case Study #6

Leonard works as a clerk typist for a large employer. He likes to wear jewelry and his attire frequently includes earrings and necklaces. His boss, Margaret, thinks it's "weird" that, as a man, Leonard wears jewelry and wants to be a clerical worker. She frequently makes sarcastic comments to him about his appearance and refers to him "jokingly" as her office boy.

Leonard, who hopes to develop his career in the area of customer relations, applies for an open promotional position that would involve working in a "front desk" area, where he would interact with the public.

Margaret tells Leonard that if he wants that job, he had better look "more normal" or else wait for a promotion to mailroom supervisor.



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Choose True or False to answer the following question:

1. Leonard's boss is correct to tell him wearing jewelry is inappropriate for a customer service position.

Case Study #6 – continued

Margaret is also "suspicious" that Leonard is gay, which she says she "doesn't mind," but she thinks Leonard is "secretive."

She starts asking him questions about his private life, such as "Are you married?" "Do you have a partner?" "Do you have kids?" Leonard tries to respond politely "No" to all her questions, but is becoming annoyed.

Margaret starts gossiping with Leonard's co-workers about his supposed sexual orientation.



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Choose True or False to answer the following question:

2. Leonard is the recipient of harassment on the basis of sex and sexual orientation.

Case Study #6 – continued

Leonard decides that he is not going to get a fair chance at the promotion under these circumstances, and he complains to the employer's designee about Margaret's behavior. The designee does an investigation and tells Margaret that Leonard's jewelry is not in violation of any workplace rule, that she is to consider him for the position without regard for his gender, and that she must stop making harassing comments, asking Leonard intrusive questions, and gossiping about his personal life.

Margaret stops her comments, questions, and gossiping, but she then recommends a woman be promoted to the open position. The woman promoted has much less experience than Leonard and lacks his two-year degree in customer relations from a community college.



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Choose True or False to answer the following questions:

3. Leonard has likely been the victim of discrimination on the basis of sex, sexual orientation, and/or retaliation.

Questions or Comments?



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Thank You

for attending the
New York Sexual Harassment Prevention Training

Please give us your feedback.



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